

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 32
JUDICIAL OFFICER: JONI T HIRAMOTO
HEARING DATE: 01/23/2026

ALL APPEARANCES WILL BE BY ZOOM

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of his or her decision to appear and of the issues to be argued.

Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).) CourtCall will **NOT** be used by D32. Zoom is approved for all hearings except Issue Conferences and Trials.

Dept. 32's telephone number is: (925) 608-1132.

NOTE: In order to minimize the risk of miscommunication, Dept. 32 prefers and encourages email notification to the department of the request to argue and specification of issues to be argued.

Dept. 32's email address is: dept32@contracosta.courts.ca.gov.

Submission of Orders After Hearing in Department 32 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/1613360625?pwd=pSvVmR75t9Q2H5zOgagi9rbG4xeTUM.1>

Meeting ID: 161 336 0625

Passcode: 180770

Law & Motion

1. 9:00 AM CASE NUMBER: C22-01461
CASE NAME: KANWAL SODHI VS. JONATHAN BORNSTEIN
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: BORNSTEIN, JONATHAN
TENTATIVE RULING:

Withdrawn; hearing vacated.

2. 9:00 AM CASE NUMBER: C23-00060
CASE NAME: DARYL MERRITT VS. ANDREA MERRITT
*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: MOSES S. BARDAVID
FILED BY: MERRITT, ANDREA HAVERLUK
TENTATIVE RULING

The unopposed motion of attorney Moses S. Bardavid is moot as the Stipulation to Substitution of Counsel has already been filed.

3. 9:00 AM CASE NUMBER: C23-02669
CASE NAME: ALDVIN SCHAKANOVICH VS. LINDA WILLIAMS
*HEARING ON MOTION IN RE: TO SET ASIDE DEFAULT
FILED BY: RW WILLIAMS CONSTRUCTION, INC.
TENTATIVE RULING:

Before the Court is RW Williams Construction, Inc.'s motion to set aside default ("Motion").

Defendant's Motion is **denied** for the reasons set forth below.

Initial Consideration

"[E]lectronic exhibits **must include** electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit." (Cal. R. Ct. 3.1110 (f)(4) emphasis added.) Plaintiff's counsel filed a declaration that attaches seven exhibits that span over thirty pages. Plaintiff's counsel fails, however, to include electronic bookmarks to any of the exhibits. Counsel is reminded to comply with all Rules of Court going forward.

Procedural History

Plaintiffs filed their initial complaint on October 20, 2023, naming California Compass and one of its real estate agents, Linda Williams, as defendants. Plaintiffs took the deposition of Rick Williams, the owner of moving Defendant Williams Construction, Inc. on February 25, 2025. Attorney Jeff Hubins (current counsel) represented Mr. Williams during the deposition. His representation was limited to defending the deposition.

On March 17, 2025, Plaintiffs filed a Doe Amendment substituting RW Williams Construction, Inc. as Doe Number One. RW Williams was served on April 3, 2025 – making any responsive pleading due on or before Monday, May 5. On April 17, Plaintiff served discovery on California Compass and copied